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Terms and conditions

Deriv Creator

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Deriv Creator - Terms and Conditions

These Deriv Creator Terms and Conditions (the "**Creator Terms**") establish the core legal and regulatory compliance framework for all digital advertising, social media promotions, and influencer marketing drives executed with Deriv Services Ltd ("**Deriv**").

These Creator Terms are automatically incorporated by reference into, and form an indivisible, legally binding part of, the Influencer Campaign Form (the "**Campaign Form**") executed and submitted by the party identified as the Counterparty in that form (the "**Counterparty**"). Submission of the Campaign Form constitutes absolute acceptance of these Creator Terms. Together, the Campaign Form, these Creator Terms, Schedule 1, the Campaign Inputs, and any Side Letter Acknowledgement form the "**Agreement**". Deriv and the Counterparty are collectively referred to as the "**Parties**" and individually as a "**Party**".

1. Interpretation and rules of privity

1.1. Definitions

1.1.1. **Applicable Requirements** means all laws, regulations, regulatory guidance, advertising codes, financial promotions rules, platform rules, international sanctions, anti-bribery rules, and privacy requirements applying to the campaign, Campaign Content, target territory, Counterparty, or Named Creator.

1.1.2. **Approved Account** means each social media platform, account, handle, or channel identified in the Campaign Form as approved for publication of the Campaign Content.

1.1.3. **Approved Concept** means the creator-led concept, outline, or script approved by Deriv in writing for a Video Deliverable.

1.1.4. **Campaign Content** means all content created, performed, posted, or supplied for the campaign, including each video, image, audio track, caption, text, draft, edit, and associated material.

1.1.5. **Campaign Inputs** means the objectives, product information, target audience, mandatory facts, specific disclosures, risk warnings, prohibited claims, tracking links, codes, assets, and other compliance guardrails identified in the Campaign Form or supplied by Deriv in writing.

1.1.6. **Compliant First Draft** means a complete first draft that materially follows the Approved Concept and Campaign Inputs and is reasonably capable of assessment.

1.1.7. **Deliverable Fee** means the fee allocated to an individual Video Deliverable in the Campaign Form.

1.1.8. **Emergency Instruction** means an instruction issued by Deriv under clause 4.2.2 requiring immediate correction, suspension, or removal of Campaign Content.

1.1.9. **Licence Period** means the period stated in Clause 6.2 or the Campaign Form during which Deriv may use a Video Deliverable.

1.1.10. **Named Creator** means the individual performer identified in the Campaign Form who personally creates, appears in, and publishes the Campaign Content. Where the Counterparty is an individual contracting for their own creator services, the Counterparty is the Named Creator, and any obligation on the Counterparty to procure or ensure the Named Creator's compliance is a direct obligation of the Counterparty.

1.1.11. **Side Letter Acknowledgement** means the acknowledgement in the form appended to the Campaign Form, accepted by the Named Creator where the Counterparty is not the Named Creator.

1.1.12. **Video Deliverable** means one approved audiovisual asset and the publication placements expressly stated for it in the Campaign Form.

1.1.13. **Working Day** means a day other than a Saturday, Sunday, or public holiday in the British Virgin Islands.

1.2. **Order of precedence**. If there is a direct conflict, the order of priority is:

1.2.1. Schedule 1 (compliance standards), which prevails over every other document in all circumstances;

1.2.2. A formal written amendment signed by authorised corporate signatories of both Parties;

1.2.3. The Campaign Form;

1.2.4. The Side Letter Acknowledgement, as between Deriv and the Named Creator;

1.2.5. These Creator Terms; and

1.2.6. The Campaign Inputs.

Campaign Inputs may supplement but never reduce a requirement in Schedule 1.

1.3. **Personal performance and key person rules**. This Agreement requires the explicit personal performance of the Named Creator. The Counterparty shall ensure that the Named Creator personally performs all services and controls the Approved Account. The Counterparty must not substitute a creator, performer, publisher, account, or channel without Deriv's prior written approval and an executed amendment.

1.4. Where the Counterparty is not the Named Creator, Deriv has no obligation to approve any Approved Concept, approve publication, or pay any amount until the Named Creator has accepted the Side Letter Acknowledgement and Deriv has recorded that acceptance. Publication before that acceptance is an unauthorised publication for the purposes of Clause 9.2.

2. Creator-led services and campaign management

2.1. **Co-creative approval workflow**. Deriv will supply the Campaign Inputs. The Counterparty must ensure that the Named Creator proposes an authentic concept in their own voice and personally performs the services. The Counterparty remains responsible for the Named Creator and anyone it engages. Unless Deriv agrees otherwise in writing, the Counterparty must obtain written approval of the Approved Concept before filming.

Deriv may request changes to address accuracy, regulatory compliance, brand safety, or production feasibility.

2.2. **Included revisions**. Unless the Campaign Form states otherwise, each Deliverable Fee includes concept development, filming, editing, captioning, disclosure integration, publication on one Approved Account, two standard revision rounds, the required live period, and native analytics evidence. Content corrections needed because the Counterparty or Named Creator failed to follow the Approved Concept or Campaign Inputs do not count towards the two revision rounds and must be corrected at the Counterparty's expense.

2.3. **Exclusivity and commercial relationship**. The engagement is non-exclusive unless the Campaign Form explicitly states a limited competitor restriction. The Counterparty must promptly disclose any conflicting engagements involving competitive online trading or financial services. The Counterparty is an independent contractor and is solely responsible for its personnel, insurance, taxes, and operational costs. Nothing creates an employment, partnership, or joint venture relationship.

3. Financial promotion and advertising controls

3.1. **Responsibility for content and statements**. Campaign Content must be original, accurate, honest, professionally produced, consistent with the Named Creator's genuine experience, and strictly compliant with the Campaign Inputs and Applicable Requirements. It must not be misleading, exaggerated, or likely to create unrealistic expectations about trading profits, losses, or Deriv's services. Deriv is responsible for the legal accuracy of factual product claims and mandatory risk warnings that it specifically supplies in writing. The Counterparty and Named Creator are strictly responsible for reproducing them faithfully, and for every addition, visual element, interpretation, or deviation they introduce.

3.2. **Mandatory disclosures**. Each Video Deliverable must:

3.2.1. Clearly identify the commercial relationship using #ad or the exact local-language disclosure specified by Deriv, prominently at the very beginning of the caption or post text before a viewer must select "more";

3.2.2. Deploy the platform's paid-partnership or branded-content settings where available;

3.2.3. Include a clear, uninterrupted in-video disclosure, both visually and audibly, where required by Deriv or local regulations;

3.2.4. Display or state each approved financial risk warning in the exact wording, font size, prominence, and duration specified by Deriv; and

3.2.5. Target only the approved geographic audiences and age parameters.

3.3. **Advice and age restrictions**. The Counterparty and Named Creator shall not provide personalised trading or investment advice in Campaign Content, livestreams, comments, text replies, or direct messages. They must not boost, whitelist, or pay to distribute Campaign Content unless approved in the Campaign Form. They must not target, or knowingly make Campaign Content appealing to, anyone under the age of eighteen (18).

3.4. **Prohibited financial depictions**. Campaign Content must not guarantee or imply profit, easy money, financial success, or a risk-free trading environment; depict trading as gambling, a primary source of income, or a shortcut to luxury lifestyle financing; use misleading urgency, fear, or pressure; or make unapproved claims about regulators, market conditions, or competitors. Campaign Content must not, without Deriv's prior express written approval: display or describe any account balance, profit or loss figure, trade result, or portfolio value, whether actual, demonstration-account, historical, illustrative, or simulated; promote or reference trading signals, copy-trading, managed accounts, or third-party strategy services; predict the price or direction of any instrument; or compare returns to those of any other asset class, product, or savings alternative.

3.5. **Prior approval rule**. The Counterparty must submit each Video Deliverable for Deriv's written approval before publication. The Counterparty must not publish, release, or repurpose a Video Deliverable unless Deriv has approved that exact version in writing. Silence or delay is never approval.

3.6. **Audience interaction**. Where the deliverables require the Named Creator to interact with the public, including responding to post comments or direct messages, or conducting live streams, the Named Creator must remain strictly factual, non-promotional, and compliant with all Campaign Inputs. The Named Creator is strictly prohibited from answering user queries regarding specific investment returns, trading strategies, or onboarding troubleshooting in comments or direct messages. Any unauthorised financial guidance provided in interactive threads constitutes an immediate material breach.

4. Publication, live period, and emergency takedown

4.1. **Publication and metric authenticity**. The Counterparty must ensure the Named Creator publishes each approved Video Deliverable within the window specified in the Campaign Form, keeps it publicly accessible for the required live period, and provides authentic native-platform analytics exports. Metrics, views, clicks, and engagement must not be artificially manipulated or simulated.

4.2. Takedown and modification rights

4.2.1. **Grounds**. Deriv may at any time instruct the Counterparty or Named Creator to modify, suspend, geo-block, or permanently remove any Campaign Content, including where Deriv is required to act by a regulator, court, or platform; where the Campaign Content presents a legal, sanctions, fraud, compliance, or material reputational risk; where Deriv considers it necessary to protect its brand; or where the regulatory or country-risk status of a relevant jurisdiction changes.

4.2.2. **Emergency instructions**. Where Deriv states that an instruction under Clause 4.2.1 is urgent, it is an Emergency Instruction. An Emergency Instruction is valid if sent from a designated Deriv compliance address to the Counterparty's notice email, and, where a mobile number is nominated in the Campaign Form or the Side Letter Acknowledgement, also sent to that number. The Counterparty must acknowledge within thirty (30) minutes and complete the action within two (2) hours of acknowledgement, and in any event within four (4) hours of transmission.

4.2.3. **Standard instructions**. For any other instruction under Clause 4.2.1, the Counterparty must comply within twenty-four (24) hours of transmission.

4.2.4. **Standing platform authority**. The Counterparty grants, and shall procure that the Named Creator grants, Deriv a standing authority to request removal or restriction of Campaign Content directly from the relevant platform, and shall provide any consent or delegated access the platform requires. Deriv's exercise of this authority is not itself a breach by the Counterparty.

4.2.5. **Consequences of non-compliance**. Failure to meet Clause 4.2.2 or 4.2.3 is a material breach. Forfeiture under Clause 4.3 applies only where the failure is wilful, repeated, or causes Deriv actual regulatory, platform, or legal detriment; otherwise, amounts already earned remain payable.

4.3. Financial impact of takedowns.

4.3.1. Removal not caused by the Counterparty or Named Creator. Where Deriv requires removal for a reason not caused by a breach by the Counterparty or Named Creator, including a change in regulatory or country-risk status, amounts already earned remain payable. Where removal occurs before the publication milestone in Clause 5.1 is met, that milestone is treated as met once the Video Deliverable was published in accordance with Clause 5.1 and analytics up to the time of removal are supplied.

4.3.2. Removal caused by the Counterparty or Named Creator. Where removal results from their regulatory breach, non-compliance with risk disclosures, unauthorised edits, fraud, or misconduct, no unpaid amount for that Video Deliverable is earned, and any unearned advances must be refunded within three (3) Working Days.

4.3.3. Platform-initiated removal. Removal initiated by the platform and not attributable to a breach by the Counterparty or Named Creator is treated under Clause 4.3.1.

5. Financial milestones and payment rules

5.1. **Payment structure**. The payment structure and fee for each Video Deliverable are set out in the applicable Campaign Form. Unless the Campaign Form states otherwise, each Video Deliverable is earned separately, and its full Deliverable Fee becomes payable upon verified publication. Publication is verified when Deriv confirms that the approved Video Deliverable was posted by the Named Creator on the Approved Account within the agreed window, matches the approved version in all material respects, contains all mandatory risk warnings and disclosures, and remains publicly accessible and compliant for an initial seventy-two (72) hour verification period.

5.2. **Verification and processing**. Deriv will pay an earned amount within seven (7) Working Days after the applicable verification milestone and receipt of a valid invoice, if required. Payment is strictly subject to satisfactory identity verification, KYC checks, sanctions screening, and invoice audits. Deriv may withhold or set off any disputed, unearned, or potentially non-compliant funds while it investigates a campaign incident.

5.3. **The fixed deliverable fee**. Expenses and taxes include all operational costs, equipment, agency fees, and expenses unless the Campaign Form explicitly approves an itemised expense. The Counterparty is solely responsible for its own taxes, social contributions, and corporate duties. Payment to the Counterparty or the

approved payee designated in the Campaign Form fully discharges Deriv's financial obligations under this Agreement.

6. Ownership, intellectual property, and usage rights

6.1. **Ownership and licence**. The Counterparty or its licensors retain ownership of the Campaign Content. On payment in full of the Deliverable Fee for a Video Deliverable, the Counterparty grants Deriv, and shall procure that the Named Creator grants Deriv, an exclusive, worldwide, irrevocable, royalty-free, sublicensable licence to use, reproduce, edit, adapt, distribute, and display that Video Deliverable and any element of it, for the media, territory, and Licence Period set out in Clause 6.2 or the Campaign Form. To the extent permitted by law, the Counterparty and the Named Creator waive all moral rights and similar personal rights in the Campaign Content worldwide. Deriv may sublicense these rights to its group companies and service providers solely to execute the associated campaigns.

6.2. **Licence period and permitted use**. The Licence Period is twelve (12) months from first publication unless the Campaign Form states otherwise. Deriv may make reasonable technical edits, including cropping, resizing, subtitling, translating, or reformatting, provided this does not materially distort the Named Creator's message or create a misleading endorsement. Paid media amplification, whitelisting, dark posts, broadcast, out-of-home placement, third-party advertising, use after the Licence Period, or materially different use is strictly prohibited unless the Campaign Form explicitly grants it.

6.3. **Archival licence and name and likeness consents**. Deriv retains a perpetual, worldwide, royalty-free licence to store and use Campaign Content internally or with its professional advisers for legal, regulatory, evidential, compliance monitoring, and archival purposes. The Counterparty must procure that the Named Creator grants the right to use the Named Creator's name, image, likeness, voice, performance, handle, and public biography in connection with the Video Deliverable and for the licensed uses.

6.4. **Third-party material clearances**. The Counterparty must disclose and clear all third-party music, stock footage, imagery, locations, and trademarks for every agreed use. Pre-existing creator material remains owned by its existing owner, but the Counterparty grants the rights needed to use it as embedded in the final Video Deliverable. Deriv grants a limited, revocable, non-transferable licence to use Deriv logos and trademarks solely for the performance of this campaign.

7. Confidentiality and data protection

7.1. The Counterparty and Named Creator must keep strictly confidential all non-public information about Deriv, its group companies, products, retail customers, marketing strategies, pricing models, internal systems, security protocols, and Campaign Inputs. They may use it only to perform this Agreement and disclose it only to personnel who strictly need it and are bound by equivalent confidentiality duties. On request or when the Agreement ends, they must return or securely delete confidential information. This duty continues for three (3) years after termination. Each Party must comply with applicable data-protection requirements. Deriv may process identity, contact, KYC, payment, and campaign analytics data under its applicable corporate privacy notice.

8. Warranties, agency liability, and indemnities

8.1. **Core representations and counterparty warranties**. The Counterparty warrants and represents that it and the Named Creator:

8.1.1. Have the full authority, capacity, corporate rights, and active account controls needed to perform this Agreement;

8.1.2. Will comply strictly with the Approved Concept, Campaign Inputs, and all Applicable Requirements;

8.1.3. Will provide completely accurate analytics and will not use bots, click farms, or deceptive practices;

8.1.4. Are not restricted by applicable international sanctions and will notify Deriv promptly of any status change;

8.1.5. Will not offer, request, or accept a bribe, kickback, or improper financial advantage;

8.1.6. Will not use generative artificial intelligence (AI) tools, deep-fakes, or voice cloning to replicate or simulate the Named Creator's likeness, performance, or voice within the Campaign Content without Deriv's prior explicit written authorisation, and will not use generative AI to depict any other real person, or to generate or simulate Deriv platform interfaces, data, or performance figures;

8.1.7. Will promptly notify Deriv of any event, legal claim, account restriction, shadow-ban, or conflict that could materially affect the campaign or Deriv's reputation;

8.1.8. Are not a party to any active litigation, criminal prosecution, regulatory investigation, or arbitration that could adversely affect performance of the services. The Counterparty must notify Deriv in writing within three (3) Working Days if the Counterparty or Named Creator becomes a party to any legal or regulatory proceeding;

8.1.9. Confirm that the Named Creator is at least 18 years of age, or the age of majority where resident, if higher;

8.1.10. Confirm that neither the Counterparty, the Named Creator, nor any beneficial owner is a sanctioned person, resident in a comprehensively embargoed jurisdiction, or an undisclosed politically exposed person;

8.1.11. Have not been subject to a regulatory sanction or platform ban for advertising or financial-promotion breaches;

8.1.12. Confirm that the Approved Account was not purchased and its following has not been artificially acquired; and

8.1.13. Have no undisclosed personal or financial relationship with a Deriv employee.

8.2. **Corporate and agency liability guarantee**. Where the Counterparty is a company, corporation, or talent management agency:

8.2.1. The Counterparty acts as a primary obligor and unconditionally and irrevocably guarantees the full, timely, and faithful compliance by the Named Creator with all terms, content standards, brand safety guardrails, disclosures, risk warnings, and covenants set out in this Agreement; and

8.2.2. Any act, omission, deviation, or breach of these terms by the Named Creator shall be treated as a direct, joint, and several material breach by the Counterparty itself under this Agreement.

8.3. 8.3 Indemnification. The Counterparty must defend, indemnify, and hold harmless Deriv, its group companies, officers, employees, agents, and successors against all losses, liabilities, claims, fines, regulatory penalties, costs, and reasonable legal fees arising from a third-party claim or regulatory action connected with:

8.3.1. Infringement or misuse of intellectual property, publicity, or privacy rights in the Campaign Content;

8.3.2. A breach of Clauses 3, 4, 6, 7, or 8 by the Counterparty or the Named Creator;

8.3.3. A failure to comply with Applicable Requirements; or

8.3.4. Fraud, gross negligence, wilful misconduct, or material misrepresentation by the Counterparty or Named Creator.

8.4. **Indemnity carve-out**. The Counterparty's indemnity obligations under this Clause 8 do not apply to any losses, fines, or regulatory claims to the extent arising directly from the unaltered wording of mandatory financial risk warnings or factual product assets explicitly provided to the Counterparty by Deriv in writing.

9. Cancellation, termination, and liability caps

9.1. **Deriv convenience cancellation fees**. Deriv may cancel a Video Deliverable for convenience by written notice or email. If neither the Counterparty nor the Named Creator is in material breach:

9.1.1. Before a Compliant First Draft is submitted, no cancellation fee is payable, but Deriv will reimburse pre-approved, non-refundable third-party expenses reasonably incurred before notice;

9.1.2. After a Compliant First Draft is submitted but before final approval, Deriv will pay 50% of that Video Deliverable's total Deliverable Fee;

9.1.3. After final approval but before publication, Deriv will pay 70% of that Video Deliverable's total Deliverable Fee; and

9.1.4. After publication, standard milestone rules apply.

9.2. **Suspension**. Deriv may immediately suspend performance, payment processing, or the visibility of any deliverable if it reasonably believes there is a breach, operational delay, regulatory non-compliance, unauthorised publication, metrics manipulation, sanctions risk, severe reputational danger, or insolvency. Suspension is not termination, and Deriv may lift it at any time. Amounts already earned at the date of suspension remain payable once the matter is resolved, unless the Agreement is subsequently terminated under Clause 9.3.

9.3. Termination

9.3.1. **Termination by Deriv**. Deriv may terminate this Agreement by written notice where any ground in Clause 9.2 applies, and the Counterparty has not remedied it within seven (7) Working Days of notice, or where the ground is incapable of remedy.

9.3.2. **Immediate termination without cure**. Notwithstanding Clause 9.3.1, Deriv may immediately terminate this Agreement or cancel any pending Campaign Form by written notice, without a cure period, if:

9.3.2.1. Deriv reasonably determines that the Counterparty, the Named Creator, or an Approved Account creates an unacceptable legal, regulatory, sanctions, or country-risk exposure in any jurisdiction;

9.3.2.2. The Counterparty or Named Creator fails to comply with an Emergency Instruction issued under Clause 4.2.2; or

9.3.2.3. Any statement or representation made during intake or screening regarding the Named Creator's residence, operational location, or primary audience distribution is found to be materially inaccurate.

9.3.3. **Termination by the Counterparty**. The Counterparty may terminate only if Deriv materially breaches this Agreement and does not remedy the breach within fourteen (14) Working Days after detailed written notice.

9.3.4. **Payment on termination**. On termination under Clause 9.3.2.1 or 9.3.2.2, Deriv's sole financial liability is to settle fees fully earned before the date of notice. On termination under Clause 9.3.2.3, Clause 4.3.2 applies. On termination under Clause 9.3.1 or 9.3.3, Clause 4.3 applies according to the cause of termination.

9.4. **Liability capping**. Neither Party is liable for indirect, incidental, consequential, special, or exemplary losses, including loss of profit, data, or business use. Subject to liabilities that cannot lawfully be limited under British Virgin Islands law, Deriv's aggregate liability under this Agreement is strictly capped at the total cumulative Deliverable Fees specified in the Campaign Form. This cap does not limit the Counterparty's

refund obligations, indemnity liabilities, liability for confidentiality or data breaches, or liability for fraud, gross negligence, or wilful misconduct.

10. Miscellaneous and mandatory workflow restrictions

10.1. **Email approvals and operational thresholds**. Routine campaign contacts listed in the Campaign Form may approve creative concepts and drafts, and agree standard operational matters, including minor revision instructions, captions, specific posting hours, tracking links, and emergency takedown requests, by standard email exchange. However, an email exchange cannot add a new Video Deliverable, change a Deliverable Fee, alter cancellation payment percentages, expand public usage rights, substitute the Named Creator, or modify liability caps and indemnities. Those fundamental variations strictly require a formal amendment document executed by digital signature by the authorised corporate legal signatories of both Parties.

10.2. **Public corrections**. If this Agreement is terminated, or content is removed, due to a regulatory non-compliance event, misrepresentation, or unauthorised financial claim made by the Counterparty or Named Creator, Deriv preserves the contractually agreed right to issue public corrective statements across its corporate domains, press releases, or social media channels as necessary to correct the public record and protect its regulatory standing.

10.3. **Notices**. Formal legal notices must be sent to the notice emails designated in the Campaign Form and are deemed received when transmitted, provided no non-delivery failure message is generated.

10.4. **Assignment**. Deriv may freely assign this Agreement to a Deriv group company or in connection with a corporate reorganisation or transfer of business assets. The Counterparty must not assign, transfer, or subcontract its obligations without Deriv's prior written consent.

10.5. **Governing law and jurisdiction**. This Agreement, its interpretation, and all non-contractual obligations arising out of or in connection with it are governed exclusively by the laws of the British Virgin Islands. The Parties will first try in good faith to resolve any dispute through direct written negotiations. If unresolved after thirty (30) days, the courts of the British Virgin Islands shall have exclusive jurisdiction to settle any dispute or legal claim.

10.6. **Electronic acceptance**. The Parties consent to entering into this Agreement by electronic means and agree that submission of the Campaign Form with the acceptance box affirmatively selected has the same effect as a signed written agreement. Deriv's electronic records of submission, including date and time, network address and device information, the version of the Creator Terms displayed, and the acceptance selections made, are admissible as evidence of the terms agreed and conclusive absent manifest error. Deriv will send a copy of the completed Campaign Form to the Counterparty's notice email on submission.

10.7. **Survival and third parties**. Clauses 6, 7, 8, 9.3, and 10 survive termination or expiry. Deriv contracts for itself and as agent and trustee for its group companies, each of which may enforce Clauses 6, 7, and 8 directly. No event beyond a Party's reasonable control excuses compliance with Clauses 3.2, 3.3, 3.4, or 4.2.

Schedule 1 — Compliance standards

To the Deriv Creator Terms and Conditions (version 2026.2)

Part A — Status and purpose

A.1 This schedule specifies the disclosures, wording, placement, prominence, and duration that clause 3.2 of the Creator Terms requires, and defines what Clauses 3.4, 3.6, and 6.4 cover.

A.2 This schedule imposes no obligation additional to Clauses 3.1 to 3.6 and 6.4. Where it lists or illustrates, it does so to specify what those clauses already require, and the lists are not exhaustive.

A.3 Under Clause 1.2, this schedule prevails on the content, wording, and placement of any required disclosure. Campaign Inputs may supplement it but may never reduce, qualify, or disapply a requirement in it.

A.4 Where a requirement in this schedule and a platform rule cannot both be satisfied, the Counterparty must not publish and must notify the Deriv authorised campaign contact before the publication window opens.

Part B — The #ad disclosure

Specifies Clause 3.2.1.

B.1 **Wording**. The disclosure required by Clause 3.2.1 is #ad, unless the Campaign Inputs specify a local-language equivalent, in which case that wording must be used instead.

B.2 **Position in the caption**. It must be the first element of the caption or post text, positioned so that it remains visible before a viewer must select "more", "see more", or any equivalent expansion control.

B.3 **Position in video**. For a Video Deliverable, #ad or Paid partnership with Deriv must additionally appear as on-screen text within the first three (3) seconds.

B.4 **Persistence**. The disclosure must persist in any re-share, repost, stitch, duet, remix, Story, or pinned comment featuring the Campaign Content, published by the Named Creator or by any account they control.

B.5 **The #ad disclosure** is separate from the risk warning in part C. Neither satisfies the other.

Part C — Risk warning wording

Specifies Clause 3.2.4.

C.1 The approved financial risk warning, required in every format and reproduced exactly, is:

> “Trading is risky and not for everyone.”

C.2 This wording must be reproduced verbatim. The Counterparty and Named Creator must not paraphrase, abbreviate, split, reorder, translate, or add to it without Deriv's prior approval, and must not present it in a manner that undermines or contradicts it.

Part D — Placement, prominence, and duration

Specifies Clauses 3.2.3 and 3.2.4.

D.1 Placement.

Format	Where the risk warning must appear
Caption or post text	At the end of the caption
Static image	As text within the image itself
Video	As on-screen text, displayed throughout the video
Separate description field	Within the description text

D.2 **Video is cumulative**. For a Video Deliverable, the on-screen warning and the caption warning are both required.

D.3 **Duration**. On-screen text carrying the risk warning must be displayed throughout the video. Where it is shown as a discrete card or frame rather than persistently, it must remain on screen for no less than four (4) seconds and be legible at the platform's default playback speed.

D.4 **Prominence**. The warning must not be disguised, diminished, or obscured. It must be presented prominently, clearly, and intelligibly, at a font size at least equal to the predominant font size used elsewhere in the same content, and must appear together with any stated benefit of the product or service.

D.5 **Legibility**. Text must have sufficient colour contrast against its background and must not be obscured by platform interface elements, including captions, buttons, progress bars, and comment overlays on TikTok, Reels, and Shorts. Text positioned within an area the platform overlays with its own furniture, or at the extreme lower edge of the frame, does not satisfy this requirement.

D.6 **Transitions**. The warning must not be hidden or curtailed by cuts, transitions, animation, or motion effects.

Part E — Conditional disclaimers

Required only where the Campaign Content has the stated feature. Each must be reproduced exactly.

E.1 **AI-generated or AI-altered people**. Where Campaign Content includes an AI-generated person or avatar, or AI-altered footage of a real person, and Deriv has authorised it under Clause 8.1.6:

“This material is created in part using artificial intelligence (AI) technology.”

Placement: as on-screen text within the first three (3) seconds, followed by the risk warning, or in the caption where clearly visible.

E.2 **Illustrative charts**. Where a chart is a visual aid carrying no real data:

The chart data displayed is for illustrative purposes only.

E.3 **Real market data**. Where a chart or figure displays actual market or price data, a source citation is required in place of E.2, naming the actual source — for example, "Source: Deriv MT5".

E.4 **Payment methods**. Where Campaign Content mentions any method of funding a Deriv account or withdrawing from one:

This payment method might be unavailable in your country. Please check your cashier.

E.5 **Third-party trademarks**. Where Campaign Content includes any third-party trademark, logo, or brand asset: Any third-party trademarks are used strictly for illustrative or descriptive purposes and do not imply any sponsorship, affiliation, or endorsement of Deriv or the Named Creator by the owner of such trademarks.

E.6 **YouTube**. Campaign Content published to YouTube must additionally carry, in the description box, the description text, entity disclosures, and audience labelling in the exact form provided in the Campaign Inputs, including any labelling required in the video title or first frame.

Part F — What Clause 3.4 covers

Illustrative and non-exhaustive. These are examples of depictions already prohibited by Clause 3.4; they do not narrow it.

F.1 Depicting trading as gambling includes casino imagery, playing cards, dice, roulette wheels, slot machines, chips, and "lucky" motifs, and — in audio — casino, slot-machine, or gambling sound effects, gaming sounds such as level-up jingles, coin sounds, and arcade effects, and cash-register or "cha-ching" sounds.

F.2 A shortcut to luxury lifestyle financing includes supercars, yachts, mansions, private jets, cash stacks, and designer goods presented as an outcome of trading.

F.3 Misleading urgency, fear, or pressure includes limited-availability claims ("only X spots left", "closing in 2 hours"), countdowns, and fear-of-missing-out framing. A general call to action such as "Sign up", "Learn more", or "Find out more" is not urgency, provided no time limit or consequence for inaction is stated or implied.

F.4 Guaranteeing or implying profit includes hashtags to that effect, such as #GuaranteedProfits, #EasyMoney, #RiskFree, or #PassiveIncome used in relation to trading, and claims that trading is easy, requires no skill, replaces employment, or produces consistent income.

F.5 Account balances, results, and figures — prohibited under Clause 3.4 — include actual, demonstration-account, historical, illustrative, and simulated figures, and extend to screenshots, screen recordings, and platform footage in which any balance, position, profit, or loss is visible. No account number or personally identifiable information may be visible in any chart, screenshot, or footage.

F.6 Charts must represent realistic market movement. Uninterrupted upward movement is prohibited unless it is factual and sourced under E.3.

F.7 Appeal to minors (Clause 3.3) includes animation styles, characters, toys, music, and cultural references associated with children, and publication to any account whose stated or apparent audience is children.

F.8 Unapproved claims about regulators (Clause 3.4) include use of a regulator's name or logo in any manner suggesting endorsement or approval of Deriv or its products.

Part G — Audience interaction

Specifies Clause 3.6.

G.1 The queries the Named Creator is prohibited from answering under Clause 3.6 include any question concerning:

G.1.1 Investment returns, expected profit, or performance;

G.1.2 Trading strategy, signals, entry or exit points, or instrument selection;

G.1.3 Account opening, verification, deposits, withdrawals, or platform troubleshooting; or

G.1.4 The suitability of any Deriv product for the person asking.

G.2 Such queries must be directed to Deriv's official support channels. The Named Creator must not offer to assist privately, by direct message, or off-platform.

G.3 Under Clause 8.1.7, the Named Creator must notify Deriv within one (1) Working Day of becoming aware of any comment or message alleging fraud, loss, misconduct, or regulatory breach in connection with Deriv.

G.4 The Named Creator must not delete, hide, or moderate comments in a manner that removes accurate statements about risk.

Part H — Third-party and Deriv material

Specifies Clause 6.4.

H.1 **Platform music libraries**. Music and sound provided through a platform's in-app library is licensed for personal, non-commercial use only. It is not cleared for Campaign Content unless the platform's licence expressly permits commercial or branded use, and the Counterparty must evidence that permission on request.

H.2 **Third-party marks**. A third-party trademark or logo must not be the principal visual focus, must not be more prominent than Deriv branding, and must not imply an endorsement, partnership, or affiliation that does not exist. The disclaimer at E.5 applies.

H.3 **Deriv marks**. The licence granted by Clause 6.4 does not extend to use of "Deriv", or any confusingly similar term, in a social media handle, account name, display name, domain name, or channel name. Where Campaign Content is co-branded, the words "Powered by" must appear above the Deriv logo.

H.4 Links and codes. Only the tracking links, codes, and destination URLs supplied in the Campaign Inputs may be used. They must not be shortened, redirected, cloaked, wrapped, or substituted, must not be placed behind an intermediary landing page, and must not point to any third party offering Deriv services.

Part I — Change control

I.1 This schedule may be amended only by Deriv. An amendment takes effect on publication of a new version number and applies only to Campaign Forms submitted after that date. The version accepted at submission governs that campaign for its duration.

I.2 The wording in parts C and E is drawn from Deriv's marketing disclaimer single source of truth. Where that source is updated, this schedule must be reconciled to it before the next campaign is issued.

I.3 No Deriv employee may waive, vary, or disapply a requirement in this schedule by email or in conversation. Clause 10.1 of the Creator Terms applies.


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